

cases, if the lord purchases parcel of the tenancy, such entire services, not annual, shall be as well extinct as the like annual services.

3. It was resolved, that if John Barney had first enfeoffed John Chapman the father, of the said three acres of pasture, and afterwards had enfeoffed the lord of the said three acres of land, and notwithstanding, the heriot service had remained for the land which John Chapman the father held; and the reason is, because John Chapman, by his purchase of three acres, held by one several and distinct tenure of heriot service, and therefore the purchase of the lord of any part of the residue which John Barney held, would extinguish only the heriot which he ought to render, and not the heriot which John Chapman by reason of his distinct and separate tenure ought to pay.

4. There is a difference between heriot service, and heriot (a) custom as to the extinguishment thereof, when [106 b] the lord purchases parcel of the tenancy: for if the lord purchases parcel of the tenancy, the heriot service is extinct: but if the custom of the manor be, that upon the death of every tenant of the manor, who dies seised of any lands held of the same manor, the lord shall have a heriot; although the lord purchases part of the tenancy, yet the lord shall have a heriot by the (b) custom of the manor for the residue, for he remains tenant to the lord, and the custom extends to every tenant. *Vide*, reader, the books cited in the case of *Bruerton*,† by which these differences, with the reason of them, will appear.

[107 a] DR. BONHAM'S CASE.

Mich. 6 Jacobi 1.

In the Common Pleas.

[See *Kemp v. Neville*, 1861, 10 C. B. N. S. 552.]

London, ss. Henry Atkins, of London, doctor in physic; George Turner, of London, doctor in physic; Thomas Moundford, of London, doctor in physic; John Argent, of London, doctor in physic; John Taylor, of London, yeoman; and William Bowden, of London, yeoman; were attached to answer to Thomas Bonham, of London, doctor in philosophy, and in physic, of a plea, wherefore they, together with William Dun, of London, doctor in physic, and Richard Ware, of London, skinner, with force and arms, him the said Thomas Bonham took, imprisoned, evilly treated, and him in prison, against the law and custom of the kingdom of England, did long detain, and other wrongs to him did, to the great damage of him the said Thomas Bonham, and against the peace of the lord the now King, &c. And whereupon he the said Thomas Bonham, by Richard Coke, his attorney, complaineth, that the aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, together with, &c. on the 10th day of November, in the fourth year of the reign of the said lord the now King, with force and arms, him the said Thomas, in the parish of the Blessed Mary-le-Bow, in the ward of Cheap, took and imprisoned, and evilly treated, and him there so in prison, for a long time, that is to say, by the space of seven days, against the law and custom of this kingdom of England, detained, and other wrongs, &c. to the great damage, &c. and against the peace, &c. Whereupon he saith, that he is injured, and hath damage to the value of 300l. and therefore he bringeth suit, &c. And the [107 b] aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, by Francis Barker, their attorney, come and defend the force and injury, when, &c. And as to the coming with force and arms, they say, that they are not thereof guilty, and of this they put themselves upon the country; and the aforesaid Thomas Bonham likewise; and as to the rest of the trespass and imprisonment aforesaid, above supposed to be done, the said Henry,

(a) Co. Lit. 149 b. 2 Brown. 296. Plowd. 95, 96.

(b) Watk. Cop. 160. Co. Lit. 149 b. 2 Brown. 296. 8 H. 7. 11.

† 6 Co. 1, 2, &c.

George, Thomas Moundford, John Argent, John Taylor, and William Bowden, say, that the aforesaid Thomas Bonham ought not to have his action aforesaid against them, because they say, that before the aforesaid time when it is supposed the aforesaid trespass and imprisonment to be done, the lord Henry the Eighth, late King of England, &c. on the 23d day of September, in the 10th year of his reign by his letters patent (which the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, sealed with his Great Seal of England, bearing date at Westminster the same day and year, bring here into Court) reciting (that) whereas he thought it the duty of his kingly office, in all reason, to provide for the good and welfare of his people, *that* would (*i.e.* ought) first of all to be done if he might in due season meet with enterprizes of wicked men: first, therefore, he held it necessary to restrain the boldness of wicked men, who professed physic more for avarice than out of confidence of a good conscience; whereupon very many incommodities did arise, to the rude and credulous common people: therefore, partly imitating the example of the well governed cities in Italy, and many other nations, and partly inclined thereunto, at the request of the great men and doctors, John Chambre, Thomas Linacre, Ferdinand de Victoria, his physicians, and of Nicholas Hatswel, John Francisco, and Robert Yaxley, physicians, and chiefly of the Right Reverend Father in Christ, and Lord Thomas (Wolsey) titled of the Holy Church beyond Tyber, priest of the most Holy Church of Rome, Cardinal of York, Archbishop, and our well beloved Chancellor of our kingdom of England; a college perpetual of doctors and grave men, who physic in his City of London, and the suburbs, and within seven miles from the said city every way, might publicly exercise, he willed and commanded to be instituted, to whom both for his honour, and in the name of the public good, and care (as he hoped) the ignorance and rashness of the malicious (which he remembered) as well by their example and gravity to deter, as by his laws late made, and by constitutions to be made by the same college to punish; which that they might more easily well accomplish, to the remembered doctors John Chambers, Thomas Linacre, Ferdinand de Victoria, his physicians, Nicholas Hatswel, John Francisco, and Robert Yaxley, physicians, he granted, [108 a] that they, and all men of the same faculty, of and in the city aforesaid, should be in deed and name, one body and commonalty perpetual, or college perpetual, and that the said commonalty or college every year for ever might choose and make of that commonalty any prudent man, and skilful in the faculty of physic, to be president of the said college or commonalty, to oversee, recognize, and govern, for that year, the college or commonalty aforesaid, and all men of the said faculty, and their businesses; and that the said president and college or commonalty, should have perpetual succession, and a common seal, to serve for the businesses of the said commonalty and president for ever; and that they and their successors for ever should be persons able and capable to purchase and possess in fee and perpetuity, lands, tenements, rents, and other possessions whatsoever: he also granted to them and their successors, for him and his heirs, that they and their successors might purchase to them and their successors, as well in the said city as out of it, lands and tenements whatsoever, not exceeding the yearly value of 12l. notwithstanding the statute of alienation in mortmain: and that they, by the name of President of the College or Commonalty of the Faculty of Physicians, London, might plead, or might be impleaded, before whatsoever Judges, in all Courts and actions whatsoever; and that the aforesaid president and college, or commonalty, and their successors, lawful assemblies, and honest of themselves, and statutes and ordinances for the wholesome government, oversight, and correction of the college or commonalty aforesaid, and of all men of the same faculty in the same city, or within seven miles' circuit of the said city, exercising, according to the exigence or necessity (as often, and when need was) might lawfully, and without peril make, without the hindrance of the said late King, his heirs or successors whatsoever, his justices, escheators, sheriffs, and other his bailiffs and ministers, his heirs and successors whatsoever: he also granted to the said president and college, or commonalty, and their successors, that none in the said city, or seven miles in circuit thereof, do exercise the said faculty unless to this, by the said president or commonalty, or their successors, (who for the time should be) he be admitted by the letters of the said president and college, with their common seal sealed, upon the penalty of 100s.

for every month, that not being admitted, he should exercise the same faculty, half thereof to the lord the King, and his successors, and half thereof to the said president and college, to be applied: he besides, willed and granted, for him and his successors (as much as in him was) that by the president and college of the aforesaid commonalty for the time being, and their successors for ever, four (persons) every year by them to be chosen, [108 b] should have the overseeing, searching, correction, and government of all and singular the physicians of the said city, exercising the faculty of physic within the said city; and so of other physicians foreign whomsoever, the said faculty of physic anywise frequenting and using within the said city, and the suburbs thereof, or within seven miles in circuit of the said city, and the punishment of them for their offences, in not well exercising, doing, and using the same; as also the oversight and searching of all medicines, and the reception (*recipes*) of them by the said physicians, or any of them, to the liege people of the said late King, for curing and healing their infirmities, to be given, put, and used, as often, and when need shall be, for the commodity and profit of the said liege people of the said late King, so as the punishments of the said physicians, using the said faculty of physic, so in the premises offending, by fines, amercement, and imprisonment of their bodies, and by other ways reasonable and fitting, be executed: he also willed and granted, for him, and his heirs and successors, (as much as in him was) that neither the president, nor any of the college aforesaid of physicians, nor their successors, nor any of them, exercising the same faculty any way in future, within the city aforesaid, and the suburbs thereof, or elsewhere, should be summoned or put, or any of them should be summoned or put in any assises, juries, inquests, inquisitions, attaints, and other recognitions within the said city, and the suburbs thereof, hereafter to be taken before the mayor or sheriffs, or coroners of the said city for the time being, or by any their officer, or minister, or officers, or ministers, although the said juries, inquisitions, or recognitions, were summoned upon the writ or writs of the said King, or his heirs, of record: but that the said master or late governors, and commonalty of the faculty aforesaid, and their successors, and every of them the said faculty exercising, against the said late King, his heirs and successors, and against the mayor and sheriffs of the said city aforesaid for the time being, and whatsoever their officers or ministers should be thereof acquitted and discharged for ever, as by the said letters patent, amongst other things, more fully appeareth. And the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William, farther say, that by virtue of the letters patents aforesaid, the aforesaid John Chambre, Thomas Linacre, Ferdinand de Victoria, Nicholas Hatswel, John Francisco, and Robert Yaxley, physicians, and all men of the said faculty in the city aforesaid, were one body and commonalty perpetual, or college perpetual; and that afterwards by a certain Act of Parliament of the said late King Henry the Eighth, holden at London the 15th day of April, in the 14th year of his reign, and from thence adjourned unto Westminster, [109 a] in the county of Middlesex, the last day of July, in the 15th year of the reign of the said late King, and then there holden, amongst other things, it was enacted by authority of the same Parliament, That for that, that the making of the said corporation of physicians was meritorious, and very good for the commonwealth of this kingdom of England, and besides, it was expedient and necessary to provide, that no person of the said body politic or commonalty aforesaid should be suffered to exercise and to practise physic, but only such persons as should be profound, *said* and *discreet*, groundedly learned, and deeply studied in physic, in consideration whereof, and for the farther authorising of the said letters patent, and also for enlarging and amplifying of farther articles for the aforesaid commonwealth, to be had and made by the said late King, with the consent of the Lords Spiritual and Temporal, and commonalty in the said Parliament assembled, it is enacted amongst other things, that the aforesaid corporation of the commonalty and fellowship of the faculty of the art of physic aforesaid, and all and every grant, article, and other things contained and specified in the said letters patent, should be approved, granted, ratified, and confirmed in the aforesaid Act, and should clearly be authorised and admitted by the same, good, lawful, and available to the aforesaid body corporate, and their successors, for ever, in as ample and large manner as it might be taken, thought, and construed by the said letters patent: and farther it is enacted, ordained, and established by the said Act, that

the aforesaid six persons, in the aforesaid letters patent named as principal, and first named of the aforesaid commonalty and fellowship, should choose to them two other of the said commonalty, who from thenceforth should be called and named elects, and the aforesaid elects yearly should choose one of them to be president of the said commonalty: and as often as any of the rooms and places of the said elects should happen to be void by death, or otherwise, then the supervisors of the said elects, within thirty or forty days next after their deaths, or any of them, should choose, name, or admit one or more, as need should require, of the most learned and expert men of and in the aforesaid faculty in London, to supply the place and number of eight persons, so that he or they who should be chosen be first examined strictly by the said supervisors, according to the form devised by the said elects, and also by the said supervisors approved, as by the said Act amongst other things more fully appeareth. And the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William, farther say, that afterwards, and before the time when, &c. by another Act of Parliament of the Lady Mary, the [109 b] Queen of England, the 24th day of October, in the first year of her reign, at Westminster aforesaid, reciting, that whereas in the Parliament holden at London, the 5th day of April, in the 14th year of the reign of the Lord Henry the Eighth, late King of England, and from thence adjourned unto Westminster, the last day of June, in the 15th year of his reign, and there holden, it was enacted, that a certain grant by letter patents of incorporation, made and granted by the aforesaid late King, to the physicians of London, and all clauses and articles contained in the said grant, should be approved, granted, ratified, and confirmed by the said Parliament; in consideration whereof, it was enacted by the authority of the same Parliament, that the aforesaid statute and Act of Parliament, in all the articles and clauses in the same contained, from thenceforth for ever should stand and continue in full strength, force, and effect, any statute, law, custom, or any thing made, had, or used to the contrary, in any thing notwithstanding: and for the better reformation of divers enormities happening to the commonwealth, by the evil usage and undue administration of physick, and for the amplifying and enlarging of the last articles, for the better execution of the things in the aforesaid grant contained, it was further enacted, that whensoever the president of the college, or commonalty of the faculty of physick in London, for the time being, or such as the aforesaid president and college, yearly, according to the tenor and meaning of the same Act, should authorise to search, examine, correct, and punish all offenders and transgressors in the aforesaid faculty, within the same city and precinct in the aforesaid Act expressed, should send, or commit such offender or offenders, for his or their offences or disobedience, contrary to any article or clause contained in the aforesaid grant, or act, to any ward, gaol, or prison, within the aforesaid city and precinct aforesaid (the Tower of London excepted) that then, and from time to time, the warders, gaolers, and keepers of the wards, gaols, and prisons within the city or precinct aforesaid (the Tower of London excepted) should receive into his or their prisons all and every such person or persons so offending, which should be sent, or committed to him, or them, as aforesaid, and there safely should keep the person or persons so committed into any of their prisons, at the proper costs and charges of the person or persons so committed, without bail or mainprize, until such offender and offenders, by disobedients, be discharged of the aforesaid imprisonment, by the aforesaid president; and such persons as by the aforesaid college should be authorised, upon pain, that every such warder, gaoler, or keeper, doing [110 a] the contrary, should lose and forfeit double of such fine and amercement as such offender or offenders, or disobedients, should be assessed to pay, by such as by the said president and college, as should be authorised, as before is said, so as the said fine and amercement should not be at any time above the sum of 20l., the moiety whereof to be employed to the use of the said late Queen, her heirs and successors, and the other moiety to the aforesaid president and college, all which forfeitures should be recovered by action of debt, bill, plaint, or information, in any the said late Queens, her heirs or successors, Courts of Record, against any such warden, gaoler, or keeper, so offending, in which no essoign, wager of law, nor protection, should be allowed, nor be admitted for the defendant: and further it was enacted, by the authority of the said Parliament, that all justices, mayors, sheriffs, bailiffs, constables, and other ministers and officers

within the city and precinct aforesaid, upon request to them to be made, should help, aid, and assist the president of the aforesaid college; and all persons, by them from time to time authorised, for the due execution of the said Act, or statute, upon pain, for not giving help to them, of being in contempt of the said late Queen, her heirs or successors, as by the same Act, amongst other things, more fully appeareth. And the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William, further say, that by virtue of the said letters patent, and by force of the statutes aforesaid, one Thomas Langton, doctor of physic, a man prudent and skilful in the faculty of physic, and then one of the commonalty of the college of physicians, in London aforesaid; and then also being one of the eight electors of the college aforesaid, before the said time when, &c. that is to say, the 30th day of September, in the year 1605, at the college of physicians, situate in London, in the parish of St. Bennet, Paul's-wharf, in the ward of Baynard's-castle, was duly chosen and preferred to the office of president of the college aforesaid, and then and there held the said office of president of the college aforesaid: and the said Thomas Langton being president of the college aforesaid, the same president and commonalty of the college aforesaid, the same 30th day of September, in the year 1605, abovesaid, at the college aforesaid, did choose Ralph Wilkinson, William Dun, Richard Palmer, and John Argent, prudent men, and skilful in the faculty of physic; and then being four doctors of the college aforesaid, to be the four censors or governors of the commonalty aforesaid, to oversee, search, correct, and govern all and singular physicians of the said city, using the faculty of physic in the said city, and other foreign physicians whomsoever, [110 b] frequenting to, and using the said faculty of physic, any ways within the said city, and the suburbs thereof, or within seven miles in circuit of the same city, and to punish their defects in not well exercising, doing, and using the same; as also to oversee, and search all manner of medicines, and their receipts, by the said physicians, or any of them, for curing of infirmities, as often as need should be; and to punish the said physicians, delinquents, exercising the said faculty of physic, by fines, amercements, and imprisonment of their bodies, and other ways reasonable and fitting, according to the form and effect of the said letters patent, and the statutes aforesaid: and the said Thomas Langton being president of the college aforesaid, and the aforesaid Ralph Wilkinson, William Dun, Richard Palmer, and John Argent, being likewise the four censors or governors of the college aforesaid, the aforesaid Thomas Bonham, within the aforesaid time in which, &c. that is to say, the 10th day of April, in the year of our Lord 1606, within London aforesaid, in the aforesaid parish of the blessed Lady of Bows, in the ward of Cheap aforesaid, contrary to the form and effects of the letters patent aforesaid, and the aforesaid statute made in the Parliament aforesaid, of the said King Henry the Eighth, did practise physic, not admitted by the letters of the aforesaid president and college, sealed with their common seal; whereas in truth the aforesaid Thomas Bonham was insufficient to practise physic; by reason whereof, the said Thomas Bonham afterwards, that is to say, the 13th day of April, in the year of our Lord 1606, at London, in the parish and ward aforesaid, was summoned by the aforesaid censors or governors of the college aforesaid, to appear before the president and censors, or governors of the college aforesaid, at the college aforesaid, in the parish and ward aforesaid, the 14th day of April, in the year of our Lord 1606, abovesaid, then next following, to be examined upon the premises: at which 14th day of April, in the year of our Lord 1606, aforesaid, at the college aforesaid, came the aforesaid Thomas Bonham, in his proper person, before the aforesaid president and censors, or governors of the said college, and then there was examined of his science in his faculty of physic to be administered, by the aforesaid censors or governors of the college aforesaid; and because the said Thomas Bonham so examined answered less aptly and insufficiently in the art of physic, he then and there upon his examination aforesaid was found by the aforesaid president and censors, or governors of the college aforesaid, less sufficient and unskilful to administer physic; and for that the aforesaid Thomas Bonham being many times examined, and forbidden by the president and censors, or governors aforesaid, for the causes aforesaid, to administer [111 a] physic for a month, or more, after such forbidding of him within London aforesaid, in the aforesaid parish of the blessed Mary of Bows, in the ward aforesaid, without the licence of the aforesaid president and college, under their common seal,

contrary to the form of the letters patent aforesaid, and the statutes aforesaid did practise, then and there it was granted, by the aforesaid president and censors, or governors of the college aforesaid, that the aforesaid Thomas, for his said disobedience and contempt, be amerced to 100s. in the next assembly of the aforesaid president and college, at the college aforesaid to be paid: and then and there it was commanded to the said Thomas Bonham, by them the president and censors, or governors of the college aforesaid, that the aforesaid Thomas Bonham, from thenceforth, should forbear to practise physic within the aforesaid City of London, and the suburbs thereof, and seven miles circuit of the said city, until the said Thomas Bonham were found to be sufficient, and should be admitted to practise the said art of physic, within the city and circuit aforesaid, by the president and college aforesaid, under the pain of being cast into prison, if in the premises, as is aforesaid, he should offend.

And the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, further say, that after and before the aforesaid time when, &c. that is to say, the first day of October, in the year of our Lord 1606, abovesaid, at the college aforesaid, at London aforesaid, in the parish and ward aforesaid, the aforesaid Thomas Langton, doctor of physic, a man prudent and skilful in the faculty of physic, and then one of the commonalty of the college of physicians in London aforesaid, and one of the electors of the college aforesaid, was elected and chosen into the office of president of the college aforesaid, for one year then next following, and the office of president of the college aforesaid, then and there held: and the said Thomas Langton being president of the college aforesaid, the same president and commonalty of the college aforesaid, the said first day of October, in the year of our Lord 1606, abovesaid, at the college aforesaid, chose the aforesaid George Turner, Thomas Moundford, William Dun, and John Argent, doctors, men prudent and skilful in the faculty of physic, and then being four of the college aforesaid, to be the four censors or governors of the said college, to supervise, search, correct, and govern, all and singular the physicians of the said city, and other foreign physicians whomsoever, frequenting to, and exercising the said faculty of physic within the same city, and the suburbs of the same city, or within seven miles' circuit of the said city, and to punish their defects, in not well exercising, doing and using the same; as also to oversee, and search all [111 b] manner of medicines and receipts by the said physicians, exercising the said faculty of physic, within the City of London aforesaid, and the circuit aforesaid, or any of them, for the curing of diseases, as often as need should be required, and to punish the said physicians exercising the faculty of physic in the premises, delinquents, by fines, amercements, and imprisonments of their bodies, and other ways reasonable and fitting, according to the form and effect of the letters patent aforesaid, and the statutes aforesaid: and the said Thomas Langton being president of the college aforesaid, and the aforesaid George Turner, Thomas Moundford, William Dun, and John Argent, being likewise the four censors, or governors of the college aforesaid, the said Thomas Bonham, before the time when, &c. that is to say, the 20th day of October, in year of our Lord 1606, abovesaid, within London aforesaid, that is to say, in the aforesaid parish of the blessed Mary of Bows, in the ward of Cheap aforesaid, did practise physic, contrary to the form of the aforesaid letters patent, and the statutes aforesaid, and the aforesaid forbidding and command of the aforesaid president and censors: and afterwards, that is to say, the same 20th day of October, in the year of our Lord 1606, aforesaid, the said Thomas Bonham, at London aforesaid, in the aforesaid parish of the blessed Mary of Bows, in the ward of Cheap aforesaid, was summoned by the aforesaid censors, or governors of the college aforesaid to appear before the said censors, at the college aforesaid, in the parish and ward aforesaid, the 22d day of the said month of October, upon the premises to be examined, at which 22d day of October, in the year of our Lord 1606, abovesaid, at the assembly of the college aforesaid, holden at the college aforesaid, at London aforesaid, in the parish and ward aforesaid; afterwards, that is to say, the same 22d day of October, in the year of our Lord 1606, abovesaid, before the said George Turner, William Dun, Thomas Moundford, and John Argent, then censors and governors of the college aforesaid, because that the said Thomas Bonham, by the aforesaid censors or governors of the college aforesaid, as it is said, being warned to appear at the college aforesaid, before the

president and censors, or governors of the college aforesaid, the aforesaid 22d day of October, in the same day, did not appear, then and there it was considered by the said censors or governors of the college aforesaid, that the said Thomas Bonham, for his disobedience and contempts, should be amerced to 10l., and that the said Thomas Bonham, for the causes aforesaid, should be arrested, and delivered into custody, and the said Henry, George, Thomas Moundford, John Argent, John Taylor, and William (Bowden,) farther [112 a] say, that afterwards, and before the time when, &c. that is to say, the 24th day of October, in the year of our Lord 1606, abovesaid, the said Thomas Langton, president of the college aforesaid, at London, in the aforesaid parish of the blessed Mary of Bows, in the ward of Cheap aforesaid, died; after whose death, and before the time when, &c. that is to say, the 25th day of October, in the year of our Lord 1606, abovesaid, the said Henry Atkins, a prudent man, and skilful in the faculty of physic, and one of the commonalty of the college aforesaid, and one of the then eight electors of the college aforesaid then being, at the college aforesaid, within London aforesaid, in the parish and ward aforesaid, was in due manner chosen, and into the office of president of the college aforesaid, for one whole year then next following, and then and there held, and as yet doth hold the said office of president of the college aforesaid; and the said Henry Atkins being president of the college aforesaid, and the aforesaid George Turner, William Dun, Thomas Moundford, and John Argent, being censors or governors of the college aforesaid, at an assembly of the college aforesaid holden, at the college aforesaid, within London aforesaid, in the parish and ward aforesaid, the 7th day of November, in the year of our Lord 1606, abovesaid, before the aforesaid Henry Atkins, then president of the college aforesaid, and the aforesaid George Turner, William Dun, Thomas Moundford, and John Argent, then censors or governors of the college aforesaid, asked whether he would satisfy to the college aforesaid, for his disobedience and contempts aforesaid, and again submit himself to be examined, and to obey the judgment of the college aforesaid; and the aforesaid Thomas Bonham then and there answered, that he, before that had within London aforesaid, done and practised, and then after within London aforesaid, would do and practise physic, no leave being asked of the said college, and that he would not, in any thing, to the president and censors, or governors of the college aforesaid, yield obedience; and then and there affirming the aforesaid president and censors, or governors aforesaid, to have no authority over those who are made doctors in the university; by which the said censors or governors, for the offences and disobedience aforesaid, then and there ordained and decreed, that the aforesaid Thomas Bonham should be sent to prison, there to remain, until from thence, by the president and [112 b] censors, or governors of the college aforesaid, for the time being he should be delivered, as by the said letters patent, and the statutes aforesaid, it is ordained and established; and then and there made their warrant, with the common seal of the said college or commonalty sealed, and to the keeper of the prison of the lord the King, in the Compter, London, in the Poultry, in the parish of St. Mildred, in the ward of Cheap directed, and commanded by the said warrant to the keeper of the prison aforesaid, that the said keeper of the prison aforesaid should receive the body of the said Thomas Bonham, and him, in the prison aforesaid, of the said lord the King, there should safely keep, without bail or mainprize, at the proper costs and charges of the aforesaid Thomas Bonham, until the aforesaid Thomas Bonham, by the command of the president and censors, or governors aforesaid, or their successors, he should be delivered; which Thomas Bonham, for his offences and disobedience aforesaid, together with the warrant aforesaid, in form aforesaid made, the said Henry Atkins then being president of the college aforesaid, and the aforesaid George Turner, William Dun, Thomas Moundford, and John Argent, then being the four censors or governors of the college aforesaid, by virtue of the letters patent, and statutes aforesaid, and the aforesaid William Bowden and John Taylor as servants of the said Henry Atkins, president, and of George, William Dun, Thomas Moundford, and John Argent, and by their the said president, and four censors or governors aforesaid, warrant, the

aforesaid time, when, &c. to one Richard Ware, then keeper of the said prison of the lord the King, of the Compter aforesaid at London, in the parish of St. Mildred the Virgin; in the Poultry, in the ward of Cheap aforesaid, did commit and deliver into safe custody, according to the form and effect of the letters patent, and statutes aforesaid, as to them it was lawful to do; which commitment of the aforesaid Thomas Bonham, for the causes aforesaid, in form aforesaid done, is the same trespass and imprisonment whereof the aforesaid Thomas Bonham above complaineth: and this they are ready to verify, and thereupon pray judgment, if the said Thomas Bonham his action aforesaid against them ought to have, &c.

And the aforesaid Thomas Bonham saith, that he, for any thing before, &c. alleged to have his action, ought not to be barred, because protesting that he the said Thomas Bonham, was not insufficient, nor was found by the aforesaid president and censors, or governors of the college aforesaid, to practise physic, nor unfitly or insufficiently to the aforesaid president and censors, or governors of the college aforesaid, in the art of physic did answer, as the said H. Atkins, G. Turner, T. Moundford, [113 a] John Argent, John Taylor, and William Bowden, above have alleged for plea, the said Thomas Bonham saith, that by the aforesaid Act in the aforesaid Parliament, of the aforesaid late King Henry VIII. holden at London, aforesaid, the aforesaid 5th day of April, in the 14th year of his reign, and from thence adjourned to Westminster, in the aforesaid county of Middlesex, until the last day of July, in the 15th year of the reign of the said King, and then and there holden, it was further enacted by authority of the same Parliament, that whereas in the dioceses of England, out of London, it was not then very likely always to find men able sufficiently to examine according to the statute such as should be admitted to exercise physic in them, that no person then after be suffered to exercise physic through England, until the said person should be examined at London, by the aforesaid president, and three of the aforesaid electors and should have from the said president and electors, letters testimonial of their approbation and examination, except he should be a graduate of Oxford or Cambridge, who had accomplished all things for his form without any grace. And further, the said Thomas Bonham saith, that he the said Thomas, the second day of July, in the year of our Lord 1595, in the University of Cambridge aforesaid took the degree and dignity of a doctor in physic; and then and there, that is to say, the said second day of July, in the year of our Lord 1595 abovesaid, in the University aforesaid, at Cambridge aforesaid, in the county of Cambridge, was duly and lawfully ordained and made a graduate of the University aforesaid, that is to say, doctor in physic, according to the laws, statute, constitutions, and ordinances of the said University of Cambridge aforesaid, and that he the said Thomas Bonham then and there had accomplished all things concerning his degree aforesaid, by his form, without grace, from time to time, according to the laws statutes, constitutions, and ordinances of the said University of Cambridge aforesaid: by colour whereof the said Thomas Bonham, a graduate of the University of Cambridge aforesaid, that is to say, being doctor in physic in the form aforesaid, who had accomplished all things concerning his degree aforesaid, for his form, without any grace, the said faculty of physic from time to time in the said City of London, that is to say, in the aforesaid parish of the blessed Mary of Bow, in the ward of Cheap aforesaid, did exercise, as it was lawful for him to do, until the aforesaid Henry Atkins, George Turner, Thomas Moundford, John Argent, John Taylor, and William Bowden, together with, &c. the aforesaid 10th day of November, in the fourth year abovesaid, with force and arms, him the said Thomas Bonham, at London aforesaid, in the aforesaid parish of the blessed Mary of Bow, in the ward of Cheap, took and imprisoned, and [113 b] him there in prison long, that is to say, by the space of seven days, against the law and custom of this kingdom of England, did detain, as the aforesaid Thomas Bonham above against them complaineth, and this he is ready to verify: whereupon, inasmuch as the aforesaid Henry Atkins, George Turner, Thomas Moundford, John Argent, John Taylor, and William Bowden, the trespass and imprisonment aforesaid, above have acknowledged, the said Thomas Bonham prays judgment, and his damages, by reason of the trespass and imprisonment aforesaid, to be adjudged unto him, &c. And the aforesaid Henry Atkins, George Turner, Thomas Moundford, John Argent, John Taylor, and William Bowden say, that the aforesaid plea of the aforesaid Thomas Bonham, above by

replication pleaded, is not sufficient in law, for him the said Thomas Bonham to maintain his said action, against them the said Henry Atkins, George Turner, Thomas Moundford, John Argent, John Taylor, and William Bowden, and that they to that plea in manner and form aforesaid by replication pleaded, need not, nor by the law of the land are bound to answer, and this they are ready to verify, whereupon they pray judgment, And that the said Thomas Bonham may be barred from having his action aforesaid against them, &c. And the aforesaid Thomas Bonham, forasmuch as he sufficient matter in law, to maintain his action aforesaid, against the said Henry Atkins, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, above hath alleged, which he is ready to verify, which matter the aforesaid Henry, George, Thomas Moundford, John Argent, John Taylor, and William Bowden, do not deny, nor to the same any ways answer, but the same averment altogether to admit do refuse, as before prays judgment and his damages, by occasion of the trespass and imprisonment aforesaid to be adjudged, to him, &c. And because the justices here will advise themselves of and upon the premises aforesaid, whereof the parties have put themselves upon the judgment of the Court aforesaid, before that they give their judgment thereof, day is given to the parties here, until in eight days of St. Hilary, to hear their judgment thereof, because the same justices here thereof are not yet, &c.

[113 b] DR. BONHAM'S CASE.

Hil. 7 Jac. 1.

In an action for false imprisonment, brought against the President and Censors of the College of Physicians and Others, the defendants justified under the charter for the incorporation of the college, and the stat. 14 and 15 Hen. 8. cap. 5. by which the charter is confirmed, and the stat. 1 Mary. cap. 9. enlarging the power of the censors, and set forth that the plaintiff practised physick not being admitted, &c.: that being examined, he was found insufficient, and forbidden to practise: but, notwithstanding such prohibition, he afterwards practised for a month or more, whereupon they amerced him 5l. to be paid to them at their next assembly, &c. and likewise enjoined him to forbear practising any more until he be found sufficient, &c. under pain of imprisonment: that he continuing still to practise, was further fined and ordered to be committed: that being questioned, if he would submit to the said college? he replied, that he had practised and would practise without leave of the college; and denied that by the statute they had any authority over him, he having taken his degree of Doctor of Physick, within the university, regularly; whereupon the censors ordered him to prison, which was executed accordingly. The plaintiff in his replication shewed the clause in the Act upon which he relied, and averred that he had taken the degree of Doctor of Physick in the University of Cambridge, and practised physick in the City of London as he well might: upon demurrer to this replication judgment was give for the plaintiff.

Resolved,—1. The censors had no power to commit the plaintiff for any of the causes mentioned in the bar. Because the said clause which gives power to the said censors to fine and imprison does not extend to the clause, "That none in the said city, &c. exercise the said faculty, &c." which clause prohibits every one from practising in London, &c. without licence of the president and college, but extends only to punish those who practise in London, *pro delictis suis in non bene exequendo, faciendo, et utendo facultate medicinæ*, so that their power is limited to the ill and not to the good use and practice. 2. Admitting the censors had power, yet they have not pursued it;—1. Because the censors alone have power to fine and imprison whereas here the president and censors imposed this fine of 5l. 2. The plaintiff was summoned to appear before the president and censors, and for not appearing was fined 5l., whereas the president had no authority. 3. The fines imposed by them by virtue of this Act belong to the King and not to them, and yet the fine is limited to be paid to themselves, &c. and for nonpayment they have imprisoned

him. 4. They ought to have committed the plaintiff immediately, although no time be limited in the Act. 5. Their proceedings ought not to be by parol inasmuch as their authority is by patent and Act of Parliament, and especially it being to fine and imprison. 6. The Act giving a power to imprison until he be delivered by the president and censors, or their successors, shall be taken strictly, or otherwise the liberty of the subject is at their pleasure.

*1. None can be punished for practising physic within London, but by forfeiture of 5l. a month, which is to be recovered by the law. 2. If any practise physic there for less time than a month, he shall forfeit nothing. 3. If any person prohibited by the statute offend in *non bene exequendo*, &c. they may punish him according to the statute within the month. 4. Those whom they commit to prison by the statute ought to be committed immediately. 5. The fines which they assess according to the statute belong to the King. 6. They cannot impose fine or imprisonment without making a record thereof. 7. The cause for which they impose a fine and imprisonment ought to be certain; for it is traversable.* S. C. 1 Brown. 255.

Carth. 192. 6 Mod. 125. Skinner 568. 4 Inst. 251. 2 Brown. 255, 256, &c. 1 Ld. Raym. 454. Com. Dig. Phy. A. Vin. Ab. Phys. A. 4 Burr. 2188.

[114 a] Thomas Bonham, doctor in philosophy and physic, brought an action of false imprisonment against Henry Atkins, George Turner, Thomas Moundford, and John Argent, doctors in physic, and John Taylor, and William Bowden, yeomen; for that the defendants, the 10th November anno 4 Jacobi, did imprison him, and detain him in prison seven days. The defendants pleaded the letters patent of King H. 8. bearing date 23 September anno 10 of his reign, by which he recites, *Quod cum Regii officii sui munus arbitrabatur ditionis sue hominum felicitati omni ratione consulere, id autem vel imprimis fore si improborum conatibus tempestive occurreret, &c.* And by the same letters patent, the King granted to John Chambre, Thomas Linacre, Ferdinando de Victoria, John Halswel, John Frances, and Robert Yaxley, *quod ipsi omnesque homines ejusdem facultatis de et in civitat' London sint in re et nomine unum corpus et communitas perpetua, per nomen præsidentis et collegii, sive communitatis facultatis medicinæ London, &c.* And that they might make meetings and ordinances, &c. But the case at Bar doth principally consist on two clauses in the charter. The first, *concessimus etiam eisdem præsidenti et collegio seu communitati et successoribus suis, quod nemo in dicta civitate, aut per septem milliaria in circuitu ejusdem, exerceat dictam facultatem medicinæ, nisi ad hoc per dict' præsident' et communit' seu successores suos, qui tempore fuerint, admissus sit per ejusdem præsidentis et collegii literas sigillo suo communi sigillat' sub pœna centum [114 b] solidorum pro quolibet mense quo non admissus eandem facultatem exercuerit, dimid' inde dom' Regi et heredibus suis, et dimidium dict' præsidenti et collegio applicand', &c.* The second clause is, which immediately follows in these words, *præterea voluit et concessit pro se et successoribus suis, quantum in se fuit, quod per præsident' collegium prædict' communitat' pro tempore exist' et eorum successores imperpetuum, quatuor, singulis annis per ipsos eligerent qui haberent supervisum et scrutinium, correctionem et gubernationem omnium et singulorum dict' civitatis medicorum, utentium facultat' medicinæ in eadem civitate, ac aliorum medicorum forinsecorum quorumcunque facultatem illam medicinæ, aliquo modo frequentantium et utentium infra eandem civitatem et suburbia ejusdem, sive infra septem milliarii in circuitu ejusdem civitatis, ac punitionem eorundem pro delictis suis in non bene exequend' faciend' et uten' illa: necnon supervisum et scrutinium omnium medicinarum, et earum receptionem per dictos Medicos seu aliquem eorum hujusmodi ligeis dicti nuper Regis pro eorum infirmitatibus curand' et sanand' dand' imponend', et utend' quoties et quando opus fuerit, pro commodo et utilitat' eorundem ligeorum dicti nuper Regis: ita quod punitione eorundem medicorum utentium dicta facultate medicinæ sic in præmiss' delinquentium per fines, amerciamenta et imprisonment' corporum suorum, et per alias vias rationabiles et congruas exequeretur, prout by the said charter plenius liquet. Et quod virtute præd' literarum patentium præd' J. Chambre, Tho. Linacre, &c. et omnes homines ejusdem facultatis in civil' præd' fuer' unum corpus et communitas perpet' sive collegium perpetuum. And*

afterwards by Act of Parliament made anno (a) 14 Hen. 8., it was enacted that the said corporation, and every grant, article, and other things in the said letters patent contained and specified, should be approved, granted, ratified, and confirmed, &c. *in tam amplo et largo modo prout poterit acceptari, cogitari, et construi per easdem literas patentes*. And further it was enacted that the said six persons named in the said letters patent, as principal of the said college, should elect to them two others of the said college, who should be named *electi*, and that the said elects should choose one of them to be president as by the said Act appears: and further they pleaded the Act of (b) Mariae, by which it was enacted, *Quod quædam concessio per literas patentes de incorporatione facta per prædict' nuper Regem medicis London. Et omnes clausule et articuli content' in eadem concessione approbarentur, concederentur, ratificarentur et confirm' per prædict' Parl'*; *in consideratione cujus inactitat' fuit autoritate ejusdem Parliamenti. Quod prædict' statut' et actum Parliamenti in omnibus articulis et clausulis in eodem content' extunc imposterum starent et continuarent in pleno robore, &c.* And further it was enact-[115 a]-ed, "That whensoever the president of the college, or commonalty of the faculty of physick at London for the time being, or such as the said president and college shall yearly, according to the tenor and meaning of the said Act, authorize to search, examine, correct, and punish all offenders and transgressors in the said faculty, &c. shall send or commit any such offender or offenders for his or their offence or disobedience, contrary to any article or clause contained in the said grant or Act, to any ward, gaol, or prison within the same city (the Tower of London except) that then from time to time the warden, gaoler, or keeper, &c. shall receive, &c. such person so offending, &c. and the same shall keep at his proper charge, without bail or mainprize, until such time as such offender or disobedient be discharged of the said imprisonment by the said president, and such persons as shall be thereunto authorised, upon pain that all and every such warden, gaoler, &c. doing the contrary, shall lose and forfeit the double of such fines and amerciaments as such offender and offenders shall be assessed to pay, by such as the said president and college shall authorise as aforesaid, so that the fine and amerciament be not at any one time above the sum of 20l., the one moiety to the King, the other moiety to the president and college, &c." And further pleaded, that the said Thomas Bonham, April 10, 1606, within London, against the form of the said letters patent, and the said Acts, *exercebat artem medicinæ, non admissus per literas prædict' præsentis et collegii sigillo eorum communi sigillat' ubi revera prædict' Tho. Bonham fuit minus sufficiens ad artem medicinæ exercend'.* By force of which, the said Thomas Bonham, 30 Aprilis 1606, was summoned in London by the censors or governors of the college, *ad comparend' coram præsent' et censor' sive gubernatorib' collegii prædict' at the college &c. the 14th day of April next following, super præmissis examinand'.* At which day the said Thomas Bonham came before the president and censors, and was examined by the censors *de scientia sua in facultate sua in medicin' administrand'.* *Et quia prædict' Thomas Bonham sic examinatus minus apte et insufficienter in prædict' arte medicinæ respondebat, et inventus fuit super examinationem prædict' per prædict' præsentem et censores minus insufficiens et inexpert' ad artem medicinæ administrand' ac pro eo quod prædict' Thomas Bonham multoties ante tunc examinatus, et interdictus per præsentem et censores, de causis prædict' ad artem medicinæ administrand' per unum mensem et amplius post talem interdictionem facultatem illam in Lond' prædict' sine licentia, &c. ideo ad tunc et ibid' consideratum fuit per prædict. præsentem et censores, quod prædict' Thomas Bonham pro inobedientia et contempt' suis prædict' amerciaretur to 100s. in proximis comitiis prædict' præsentem et collegii persolvend' et deinceps abstineret, &c. quousque inventus fuerit sufficiens, &c. sub pena [115 b] conjiciendi in carcerem si in præmissis delinqueret.* And that the said Thomas Bonham, 20 Oct. 1636, within London did practise physick, and the same day he was summoned by the censors to appear before the president and them, 22 October then next following, at which day Bonham made default: *ideo*

(a) 14 & 15 H. 8. c. 5. 1 Roll. 598. 4 Inst. 241. Rastal's Physicians 3. 2 Bulst. 185. Lit. Rep. 168, 169. 172. 212. 215. 246, 247, 248, 249. 1 Jones 261. Cr. Jac. 121, 159, 160. Cr. Car. 226. Palm. 486.

(b) 1 Mar. c. 9. Rastal's Physic. 7. Lit. R. 169. 172, 173. 212, 213. 215, 248, 249, 350, 351. 1 Jones 263. Cr. Car. 257. Cr. Jac. 121. 4 Inst. 251. 2 Brown. 257, 262, 265, 266.

consideratum fuit per præd' censores, that for his disobedience and contempt he should be amerced to 10l. and that he should be arrested and committed to custody; and afterward, November 7, 1606, the said Thomas Bonham, at their assembly came before the president and censors, and they asked him if he would satisfy the college for his disobedience and contempt, and submit himself to be examined, and obey the censure of the college, who answered, that he had practised and would practice physic within London, *nulla a collegio petita venia*, and that he would not submit himself to the president and censors; and affirmed, that the president and censors, had no authority over those who were doctors in the university; for which cause, the said four censors, *sc.* Dr. Turner, Dr. Moundford, Dr. Argent, and Dr. Dun, then being censors or governors, *pro offensis et inobedientia præd' adtunc et ib' ordinaverunt et decreverunt, quod præd' Thomas Bonham in carcerem mandaretur ib' remansur' quousque abinde per præsident' et censores, seu gubernatores collegii præd' pro tempore existen' deliberaretur*, and there then by their warrant in writing, under their common seal, did commit the plaintiff to the prison of the Compter of London, &c. *absque ballio sive manucapt' ad custagia et oner ipsius Thomas Bonham, donec præd' Thomas Bonham per præcept' præsident' et censor' collegii præd' sive successor' suor' liberatus esset*; and Dr. Atkins then president, and the censors, and Bowden and Taylor as their servants, and by the commandment of the said president and censors, did carry the plaintiff with the warrant, to the gaol, &c. which is the same imprisonment. The plaintiff replied and said, that by the said Act of 14 H. 8. it was further enacted, "And where that in the dioceses of England, out of London, it is not like to find always men able sufficiently to examine (after the statute) such as shall be admitted to exercise physic in them, that it may be enacted in this present Parliament, that no person from henceforth be suffered to exercise or practise physic through England, until such time that he be examined at London by the said president and three of the said elects, and to have from them letters testimonial of their approving and examination, except he be a graduate of Oxford or Cambridge, which have accomplished all things for his form without any grace:" and that the plaintiff, anno Dom. 1595, was a graduate, *sc.* a doctor in the University of Cambridge, and had accomplished all things concerning his degree for his form without (a) grace, by force whereof he had exercised and practised physic within the City of London until the defendants had imprisoned him, &c. upon which the defendant demurred in law. And this case was often [116 a] argued by the Serjeants at Bar in divers several terms; and now this term the case was argued by the justices, and the effect of their arguments who argued against the plaintiff (which was divided into three parts) shall be first reported. The first was, whether a doctor of physic of the one university or the other be by the letters patent, and by the body of the Act of 14 H. 8. restrained from practising physic within the City of London, &c. The second was, if the exception of the said Act of (b) 14 H. 8. has excepted him or not. The third was, that his imprisonment was lawful for his said disobedience. And as to the first, they relied upon the letter of the grant, ratified by the said Act of 14 H. 8. which is in the negative, *sc. nemo in dicta civitate, &c. exerceat dictam facultatem nisi ad hoc per prædict' præsidentem et communitatem, &c. admissus sit, &c.* And this proposition is a general negative, and (a) *generale dictum est generaliter intelligendum*; and *nemo* excludes all; and, therefore, a doctor of the one university or the other is prohibited within this negative word *nemo*. And many cases were put where negative statutes shall be taken *stricte et exclusive*, which I do not think necessary to be recited here. Also they said, that the statute of (b) 3 H. 8. c. 11. which in effect is repealed by this Act of (c) 14 H. 8. has a special proviso for the Universities of Cambridge and Oxford, which being here left out, doth declare the intention of the makers of the Act, that they did intend to include them within this general prohibi-

(a) 2 Brownl. 201, 202.

(b) 14 & 15 H. 8. cap. 5.

(a) 11 Co. 59 a. Co. Lit. 36 a. 2 Inst. 81. Hard. 305.

(b) Rastal. Physician 1.

(c) 14 & 15 H. 8. c. 5. 1 Roll. 598. 4 Inst. 251. Rastal. Physician 3. 2 Bulstr. 185. Lit. Rep. 168, 169. 172. 212. 215. 246, 247, 248, 249. 1 Jones 261. Cr. Jac. 121. 159, 160. Cr. Car. 256. Palm. 486. Cart. 115.

K. B. vi.—21*

tion, *nemo in dicta civitate, &c.* As to the second point they strongly held, that the said latter clause, "and where that in the dioceses of England, out of London," &c. this clause, according to the words, extends only to places out of London, and so much the rather, because they provided for London before, *nemo in dicta civitate, &c.* Also the makers of the Act put a distinction betwixt those who shall be licensed to practise physic in London, &c. for they ought to have the admittance and allowance of the president and college in writing, under their common seal: but he who shall be allowed to practise physic throughout England, out of London, ought to be examined and admitted by the president and three of the elects; and so they said, that it was lately adjudged in the King's Bench, in an information exhibited against the said Dr. Bonham for practising physic in London for divers months. As to the third point they said, that for his contempt and disobedience before them at their assembly in their college, they might well commit him to prison; for they have authority by the letters patent and Act of Parliament, and therefore for a contempt or misdemeanor before them, they may commit him. Also the Act of (d) 1 M. has given them power to commit them for every offence or disobedience contrary to any article or clause contained in the said grant or Act. But there is an express negative article in the said grant, and ratified by the Act of 14 H. 8 [116 b] *quod nemo in dicta civitate, &c. exerceat, &c.* and the defendants have pleaded, that the plaintiff had practised physic in London by the space of one month, &c. and therefore the Act of 1 Mariæ has authorised them to imprison him in this case; wherefore they concluded against the plaintiff. But it was argued by Coke Chief Justice, Warburton and Daniel Justices at the Common Pleas, to the contrary. And Daniel, Justice, conceived that a doctor of physic, of the one university or the other, &c. was not within the body of the Act, and if he was within the body of the Act, that he was excepted by the said latter clause: but Warburton argued against him for both the points (A); and the Chief Justice did not speak to those two points, because he and Warburton and Daniel agreed, that this action was clearly maintainable for two other points, and therefore in this action the Chief Justice omitted to speak to the said two points: but to two other points he and the said two other justices, Warburton and Daniel, did speak, *sc.* 1. Whether the censors have power, for the causes alleged in their bar, to fine and imprison the plaintiff. 2. Admitting that they have power to do it, if they had pursued their power. But the Chief Justice, before he argued the points in law, because much was said in commendation of the doctors of physic of the college in London, and somewhat (as he conceived) in derogation of the dignity of the doctors of the said universities, he first attributed much to the doctors of the said college in London, and confessed that nothing was spoke in their commendation which was not due to their merits: but yet that no comparison was to be made between that private college, and either of the Universities of Cambridge and Oxford, no more than between the father and his children, or between the fountain and the small rivers which descend from it; the university is *alma mater*, from whose breasts those of that private college have sucked all their science and knowledge (which I acknowledge to be great and profound) but the law saith, *erubescit lex filios castigare parentes*: the university is the fountain, and that and the like private colleges are *tanquam rivuli*, which flow from the fountain, *et melius est petere fontes quam sectari rivulos*. Briefly, *Academia Cantabrigiæ et Oxoniæ sunt Athenæ nostræ nobilissimæ regni soles, oculi et animæ regni, unde religio, humanitas, et doctrina in omnes regni partes uberrimè diffunduntur*: but it is true, *nunquam sufficiet copia laudatoris, quia nunquam deficit materia laudis*; and, therefore, those universities exceed and excel all private colleges, *quantum inter viburna cupressus*. And it was observed that King Henry VIII. in his said letters patent and the King and

(d) 1 Mar. c. 9. Rastal. Physician 7. Lit. Rep. 109. 172, 173, 212, 213. 215. 248, 249. 350, 351. 1 Jones 263. Cr. Car. 257. Cro. Jac. 121. 4 Inst. 251. 2 Brownl. 257. 262. 265, 266. Cart. 115.

(A) A graduate doctor of one of the universities cannot practise physic within London, or seven miles round, without licence from the college of physicians. *College of Physicians v. Dr. West*, 10 Mod. 353. *College of Physicians v. Levett*, 1 Ld. Raym. 472.

the Parliament in the Act of 14 H. 8. in making of a law concerning physicians, for the more safety and health of men, therein follow the order of a good physician (*Rez enim omni' artes censetur habere in scrinio pect' sui*) for, *medicina* [117 a] *est duplex, removens, et promovens; removens morbum, et promovens ad salutem*; and, therefore, five manner of persons (who more hurt the body of man than the disease itself, one of which said of one of their patients, *fugiens morbum incidit in medicum*) are to be removed:—1. *Improbi*. 2. *Avari, qui medicinam magis avaritiæ suæ causa quam ullius bonæ conscientie fiducia profitentur*. 3. *Malitiosi*. 4. *Temerarii*. 5. *Inscii*. And of the other part five manner of persons were to be promoted, as appears by the said Act, *sc.* those who were: 1, profound; 2, sad; 3, discreet; 4, groundly learned; 5, profoundly studied. And it was well ordained, that the professors of physick should be profound, sad, discreet, &c. and not youths, who have no gravity and experience; for as one saith, *In juvene theologo conscientie detrimentum, in juvene legista bursæ detrimentum, in juvene medico cæmeterii incrementum*. And it ought to be presumed, every doctor of any of the universities to be within the statutes, *sc.* to be profound, sad, discreet, groundly learned, and profoundly studied, for none can there be master of arts (who is a doctor of philosophy) under the study of seven years, and cannot be doctor in physick under seven years more in the study of physick; and that is the reason that the plaintiff is named in the declaration doctor of philosophy, and doctor of physick; *quia oportet medicum esse philosophum, ubi enim philosophus desinit, medicus incipit*. As to the two points upon which the Chief Justice, Warburton and Daniel, gave judgment. 1. It was resolved by them, that the said censors had not power to commit the plaintiff for any of the causes mentioned in the bar; and the cause and reason thereof shortly was, that the said clause, which gives power to the said censors to fine and imprison, doth not extend to the said clause, *sc. quod nemo in dicta civitate, &c. exerceat dictam facultatem, &c.* which prohibits every one from practising physick in London, &c. without licence from the president and college: but extends only to punish those who practise physick in London, *pro delictis suis in non bene exequendo, faciendo et utendo facultate medicine*, by fine and imprisonment (B): so that the censors have not power by the letters patent, and the Act, to fine or imprison any for practising physick in London, but only *pro delictis suis in non bene exequendo, &c. sc.* for ill, and not good use and practice of physick. And that was made manifest by five reasons, which were called *vidiæ rationes*, because they had their vigour and life from the letters patent and the Act itself; and the best (a) expositor of all letters patent, and Acts of Parliament, are the letters patent and the Acts of Parliament themselves, by construction, and conferring (b) all the parts of them [117 b] together, (c) *optima statuti interpretatrix est (omnibus particulis ejusdem inspectis) ipsum statutum*; and (d) *injustum est nisi tota lege inspecta una aliqua ejus particula proposita judicare vel respondere*. The first reason was, that these two were two absolute, perfect, and distinct clauses, and as parallels, and therefore the one did not extend to the other; for the second begins, *præterea voluit et concessit, &c.* and the branch concerning fine and imprisonment is parcel of the second clause. 2. The first clause prohibiting the practice of physick, &c. comprehends four certainties:—1. Certainty of the thing prohibited, *sc.* practice of physick. 2. Certainty of the time, *sc.* practice for one month. 3. Certainty of penalty, *sc.* 5l. 4. Certainty in distribution, *sc.* one moiety to the King, and the other moiety to the college; and this penalty he who practises physick in London incurs, although he practices and uses physick well, and profitable for the body of man; and on this branch the information was exhibited in the King's Bench. But the clause to punish *delicta in non bene exequendo, &c.* on which branch the

(B) *Mala praxis* in a physician surgeon, or apothecary, is a great misdemeanor and offence at common law, whether it be for curiosity or experiment, or by neglect; because it breaks the trust which the party had placed in his physician, and tends to the patient's destruction. *Dr. Groenvell's case*, Ld. Raym. 243. S. C. 12 Mod. 119.

(a) Godb. 418. 2 Roll. Rep. 356, Wing. Max. 239.

(b) 2 Co. 55 a. 3 Co. 59 b. Godb. 324. Co. Lit. 381. 5 Co. 99 a.

(c) Wing. Max. 239.

(d) Wing. Max. 239.

case at Bar stands, is altogether uncertain, for the hurt which may come thereby may be little or great, *leve vel grave*, excessive or small, &c. and therefore the King and the makers of the Act could not, for an offence so uncertain, impose a certainty of the fine, or time of imprisonment, but leave it to the censors to punish such offences, *secundum quantitatem delicti*, which is included in these words, *per fines, amerciamenta, imprisonamenta corporum suorum, et per alias vias rationabiles et congruas*. 2. The harm which accrues by *non bene exequendo*, &c. concerns the body of man; and, therefore, it is reasonable that the offender should be punished in his body, *sc.* by imprisonment: but he who practices physic in London in a good manner, although he doth it without licence, yet it is not any prejudice to the body of man. 3. He who practises physic in London doth not offend the statute by his practice, unless he practises it by the space of a month. But the clause of *non bene exequendo*, &c. doth not prescribe any certain time, but at what time soever he ministers physic *non bene*, &c. he shall be punished by the said second branch: and the law hath great reason in making this distinction, for divers nobles, (a) gentlemen, and others, come upon divers occasions to London, and when they are here they become subject to diseases, and thereupon they send for their physicians in the country, who know their bodies, and the cause of their diseases; now it was never the meaning of the Act to bar any one of his own physician; and when he is here he may practise and minister to another by two or three weeks, &c. without any forfeiture; for any one who practises physic *bene*, &c. in London (although he has not taken [118 a] any degree in any of the universities) shall forfeit nothing, unless he practises it by the space of a month; and that was the reason that the time of a month was put in the Act. 4. The censors cannot be (b) judges, ministers, and parties; judges to give sentence or judgment; ministers to make summons; and parties to have the moiety of the forfeiture, *quia* (c) *aliquis non debet esse Judex in propria causa, imo iniquum est aliquem suæ rei esse judicem*; and one cannot be Judge and attorney for any of the parties, Dyer 3 E. 6. 65. 38 E. 3. 15. 8 H. 6. 19 b. 20 a. 21 E. 4. 47 a. &c. And it appears in our books, that in many cases, the common law will (d) controul Acts of Parliament, and sometimes adjudge them to be utterly void: for when an Act of Parliament is against common right and reason, or repugnant, or impossible to be performed, the common law will controul it, and adjudge such Act to be void; and, therefore, in 8 E. 3. 30 a. b. *Thomas Tregor's case* on the statute of W. 2. c. 38. *et Artic' Super Chartas*, c. 9. Herle (e) saith, some statutes are made against law and right, which those who made them perceiving, would not put them in execution (C): the

(a) Cart. 115.

(b) Co. Lit. 141 a. Bridg. 11. Dyer 220. pl. 14.

(c) Co. Lit. 141 a.

(d) 7 Co. 14 a. *Calvin's case*. 2 Brownl. 198. 265. Hard. 140.

(e) 8 E. 3. 30 b.

(C) Lord Ellesmere observes, (Observations on the Reports, p. 21.) "And for novelty in *Dr. Bonham's case*, the Chief Justice having no precedent for him, but many judgments against him, yet doth he strike in sunder the bars of government of the College of Physicians: and, without any pausing on the matter, frustrate the patent of King Henry VIII., whereby the college was erected, and tramples upon the Act of Parliament, 14 & 15 H. 8. whereby that patent was confirmed, blowing them both away as vain, and of no value, and this is in triumph of himself being accompanied but with the opinion of one Judge only for the matter in law where three other Judges were against him, which case possesseth a better room in the press than is deserved."

In Serjt. Hill's copy of the observations in Lincoln's Inn Library, there is the following manuscript observation on the strictures of Lord Ellesmere. "In page 117 of the Report of *Dr. Bonham's case*, in 8 Co. it appears that two of the other Judges agreed with Coke as to the two points of which they gave judgment. The second point is in 117 b. and the matter of law in support of it, which is condemned here, is in page 118, viz. that a statute against reason is void, and is supported by many authorities then, and by others before, and since in our Courts; and the antiquity of it is still more ancient. Just. Inst. Lib. Tit. 2. Text 1. *Dr. Bonham's case* is reported

stat. of W. 2. (f) c. 21. gives a writ of *cessavit hæredi petenti super hæredem tenen' et super eos quibus alienatum fuerit hujusmodi tenementum*: and yet it is adjudged in 33 E. 3. (a) Cessavit 42. where the case was, two coparceners lords, and tenant by fealty and certain rent, one coparcener had issue and died, the aunt and the niece shall not join in a *cessavit*, because the heir (b) shall not have a *cessavit* for the cesser in the time of his ancestor, F. N. B. 209. F. and therewith agrees Plow. Com. 110 a.; and the reason is, because in a *cessavit* the tenant before judgment may render the arrearages and damages, &c. and retain his land, and that he cannot do when the heir brings a *cessavit* for the cesser in the time of his ancestor, for the arrearages incurred in the life of the ancestor do not belong to the heir: and because it would be against common right and reason, the common law adjudges the said Act of Parliament as to that point void. The Statute of (c) Carlisle, made anno 35 E. 1. enacts, that the order of the Cistercians and Augustines, who have a convent and common seal, that the common seal shall be in the keeping of the prior, who is under the abbot, and four others of the most grave of the house, and that any deed sealed with the common seal, which is not so in keeping shall be void: and the opinion of the Court (in an. 27 H. 6. Annuity 41.) was, that this statute was (a) void, for it is impertinent to be observed, for the seal being in their keeping, the

in 2 Brownl. 255 to 266; and in p. 260, it appears that the case was argued by all the Justices of C. B., and at two several days it was argued by Foster, Daniel, and Warburton, against the plaintiff, and the second day by Walmsley, J. and Coke, C.J.: but the argument of Foster, Daniel, and Warburton, are not reported by Brownlow; but he reports fully, 1st, the argument of Walmsley for the plaintiff, and afterwards that of Coke against him. And in page 265, the like reasons and authorities are given by Coke, for his opinion, as appears in his Reports; and then Brownlow mentions only at the end, that 'so he (Coke) concluded that judgment shall be entered for the plaintiff, which was done accordingly.' This last report is, I think, a confirmation of Lord Coke's report, though Lord Coke only reports the effect of the arguments of the justices, who were of opinion against the plaintiff, fol. 116. There is, it is true, in some parts of the argument some things that savour of the pedantry and quaintness peculiar to the time, but nothing to impeach that part of it which is the part objected to by Lord Egerton; and, as above observed, Coke's opinion as to that part at least, is confirmed by many authorities before that case."

In the *City of London v. Wood*, 12 Mod. 669., debt was brought in the Mayor's Court, (a Court holden before the mayor and aldermen) on a bye-law, to recover a forfeiture for refusing to serve the office of sheriff, and such action was brought in the name of the mayor and commonalty, and it was held to be error; and per Holt, C.J., "What my Lord Coke says in *Bonham's case*, in his 8 Co., is far from any extravagancy, for it is a very reasonable and true saying, that if an Act of Parliament should ordain that the same person should be party and Judge, or which is the same thing, Judge in his own cause, it would be a void Act of Parliament; for it is impossible that one should be Judge and party, for the Judge is to determine between party and party, or between the Government and the party; and an Act of Parliament can do no wrong, though it may do several things that look pretty odd; for it may discharge one from his allegiance to the Government he lives under, and restore him to the state of nature: but it cannot make one who lives under a Government Judge and party. An Act of Parliament may not make adultery lawful, that is, it cannot make it lawful for A. to lie with the wife of B.: but it may make the wife of A. to be the wife of B., and dissolve her marriage with A." *Vid.* Doctor and Stud. p. 154. 146. *Day v. Savadge*, Hob. 87. *Stewart v. Lawton*, 1 Bing. 374. S. C. 8 B. Moore. 414.

Serjt. Hill, in his copy of the Reports, refers to Forbe's Parliam. Deb. Vol. VII. p. 84, 85, as mentioning several void Acts.

(f) 2 Inst. 401, 402.

(a) 2 Brownl. 265. 2 Inst. 402. F. N. B. 209 f.

(b) 2 Brownl. 265. Vet. N. B. 138 b. 2 Inst. 442. Com. Dig. Parl. R. 27.

(c) 2 Inst. 580, 581, 582, &c. Skinner 464.

(a) 2 Inst. 588. 2 Brownl. 198. 265.

abbot cannot seal any thing with it, and when it is in the abbot's hands, it is out of their keeping *ipso facto*; and if the statute should be (b) observed, every common seal shall be defeated upon a simple surmise, which cannot be tried. Note, reader, the words [118 b] of the said statute at Carlisle, anno 35 E. 1. (which is called *Statutum Religiosorum*) are, *Et insuper ordinavit dominus Rex et statuit, quod Abbates Cisterc' et Premonstraten' ordin' religiosorum, &c. de cætero habeant sigillum commune, et illud in custodia prioris monasterii seu domus, et quatuor de dignioribus et discretioribus ejusdem loci conventus sub privato sigillo abbatis ipsius loci custod' depo', &c. Et si forsan aliqua scripta obligationum, donationum, emptionum, venditionum, alienationum, seu aliorum quorumcunque, contractuum alio sigillo quam tali sigillo communi sicut præmittit' custodit' inveniant' a modo sigillat', pro nullo penitus habeantur omnique careant firmitate.* So the statute of 1 E. 6. c. 14. gives chauntries, &c. to the King, saving to the donor, &c. all such rents, services, &c. and the common law controuls it, and adjudges it void as to services, and the donor shall have the rent, as a rentseck, distrainable of common right, for it would be against common right and reason that the (c) King should hold of any, or do service to any of his subjects, 14 Eliz. Dyer 313. and so it was adjudged Mich. 16 & 17 Eliz. in Com' Banco in (d) *Strowd's case*. So if any Act of Parliament gives to any to hold, or to have conusans of all manner of pleas arising before him within his manor of D., yet he shall hold no plea, to which he himself is party; for, as hath been said, *iniqum est aliquem sue rei esse judicem*. 5. If he should forfeit 5l. for one month by the first clause, and should be punished for practising at any time by the second clause, two absurdities should follow,—1. That one should be punished not only twice but many times for one and the same offence. And the divine saith, *Quod (e) Deus non agit bis in idipsum*; and the law saith, (f) *Nemo debet bis puniri pro uno delicto*. 2. It would be absurd, by the first clause, to punish practising for a month, and not for a lesser time, and by the second to punish practising not only for a day, but at any time, so he shall be punished by the first branch for one month by the forfeit of 5l. and by the second by fine and imprisonment, without limitation for every time of the month in which he practises physic. And all these reasons were proved by two grounds, or maxims in law; 1. (g) *Generalis clausula non porrigitur ad ea que specialiter sunt comprehensa*: and the case between Carter and (a) Ringstead, Hil. 34 Eliz. Rot. 120. in Communi Banco, was cited to this purpose, where the case in effect was, that A. seised of the manor of Staple, in Odiham, in the county of Southampton in fee, and also of other lands in Odiham aforesaid in fee, suffered a common recovery of all, and declared the use by indenture, that the recoverer should stand seised of all the lands and tenements in Odiham, to the use of A. and his wife, and to the heirs of his body begotten; and further, that the recoveror [119 a] should stand seised to the use of him, and to the heirs of his body, and died, and the wife survived, and entered into the said manor by force of the said general words: but it was adjudged, that they did not extend to the said manor which was specially named: and if it be so in a deed, *a fortiori*, it shall be so in an Act of Parliament, which (as a will) is to be expounded according to the intention of the makers. 2. (b) *Verba posteriora propter certitudinem addita ad priora quæ certitudine indigent sunt referenda*. 6 E. (c) 3. 12 a. b. Sir Adam de Clydrow, Knight, brought a *præcipe quod reddat* against John de Clydrow; and the writ was, *quod juste, &c. reddat manerium de Wicomb et duas carucatus terre cum pertinentiis in Clydrow*, in that case the town of Clydrow shall not relate to the manor,

(b) 2 Brownl. 265. 2 Inst. 587.

(c) Dy. 313. pl. 91. 1 Co. 47 a. Dav. 2 a. Co. Lit. 1 b. Cro. Car. 82, 83. 2 Roll. Rep. 246, 247. 1 Jones 234. Lit. Rep. 43.

(d) 1 And. 45. 3 Leon. 58. 4 Leon. 40, 41.

(e) 4 Co. 43 a.

(f) 2 Vent. 170. 4 Co. 43 a. 5 Co. 61 a. 11 Co. 59 b. 1 Roll. Rep. 95. Cawly 78. Noy 82. Bridgm. 122. Cro. Jac. 481. Wing. Max. 695.

(g) *Postea* 154 b. Raymond 330. Hawkes's Max. 12. Styles 391.

(a) Cro. El. 208. 2 Leon. 47. Owen 84, 85. 1 And. 245. 6 Co. 64 b. 3 Bulstr. 66. 185. 2 Roll. Rep. 276. Winch. 92. Lane 69. Lit. Rep. 64. 67. 289. Styles 391.

(b) Wing. Max. 67. Lit. Rep. 66.

(c) Lit. Rep. 66. Wing. Max. 67. Styles 78.

quia non indiget, for a manor may be demanded without mentioning that it lies in any town, but *cum pertinentiis*, although it comes after the town, shall relate to the manor, *quia indiget*. *Vide* 3 E. 4. 10. the like case. But it was objected, that where by the second clause it was granted, that the censors should have *supervisum et scrutinium, correctionem et gubernationem omnium et singulorum medicorum, &c.* they had power to fine and imprison.

To that it was answered,—1. That *this* is but part of the sentence, for by the entire sentence it appears in what manner they shall have power to punish, for the words are, *ac punitionem eorum pro delictis suis in non bene exequendo, faciendo, vel utendo illa facultate*; so that without question all their power to correct and punish the physicians by this clause is only limited to these three cases, *sc. in non bene exequendo, faciendo, vel utendo, &c.* Also this word *punitionem* is limited and restrained by these words, *ita quod puniatio eorundem medicorum, &c. sic in premissis delinquentium, &c.* which words, *sic inpremissis delinquentium*, limit the former words in the first part of this sentence, *ac punitionem eorum pro delictis suis in non bene exequendo, &c.* 2. It would be absurd, that in one and the same sentence the makers of the Act should give them a general power to punish without limitation; and a special manner how they shall punish, in one and the same sentence. 3. Hil. 38 Eliz. in a *quo warranto* against the Mayor and Commonalty of London, it was held, that where a grant is made to the mayor and commonalty, that the mayor for the time being should have (d) *plenum et integrum scrutinium, gubernationem, et correctionem omnium et singulorum mysteriorum, &c.* without granting them any Court, in which should be legal proceedings, that is good for search, whereby a discovery may be made of offences and defects, which may be punished by the law in any Court; but it doth not give, nor can give them any irregular or absolute power to correct or punish any of the [119 b] subjects of the kingdom at their pleasure.

2. It was objected, that it is incident to every Court created by letters patent, or Act of Parliament, and other Courts of Record, to punish any misdemeanor done in Court, in disturbance or contempt of the Court, by imprisonment (D). To which it was answered, that neither the letters patent nor the Act of Parliament has granted them any Court, but only an (a) authority, which they ought to pursue, as it shall be afterwards said. 2. If any Court had been granted them, they could not by any incident authority *implicitè* granted them, for any misdemeanor done in Court, commit him to prison without bail or mainprize, until he should be by the commandment of the president and censors, or their successors, delivered, as the censors have done in this case.

3. There was not any such misdemeanor for which any Court might imprison him, for he only shewed his case to them, which, he was advised by his counsel, he might justify, which is not any offence worthy of imprisonment. The second point was, admitting that the censors had power by the Act, if they had pursued their authority, or not?

And it was resolved by the Chief Justice, Warburton and Daniel, that they had not pursued it for six reasons. 1. By the Act, the censors only have power to impose a fine, or amercement; and the president and censors imposed the amercement of 5l. upon the plaintiff. 2. The plaintiff was summoned to appear *coram presidente et censoribus, &c. et non comparuit*, and therefore he was fined 10l. whereas the president had no authority in that case. 3. The fines or amercements to be imposed by them, by force of the Act, do not belong to them, but to the King, for the King had not granted the fines or amercements to them, and yet the fine is appointed to be paid to them, *in proximis comitiis*, and they have imprisoned the plaintiff for nonpayment thereof. 4. They ought to have committed the plaintiff presently, by construction of law, although that no time be limited in the Act, as in the statute of W. 2. cap. 11. (b) *De servientibus, ballivis, &c. qui ad compotum reddend' tenentur, &c. cum dom' hujusmodi servientium dederit eis aulitores compoti, et*

(d) Cart. 120, 121.

(D) *Vid. ante* note (c) *Butt's case*, 7 Co. 25 a.

(a) *Postea* 121 a.

(b) 2 Inst. 379, 380. W. 2. c. 11. Plowd. 17 b. Rast. Account 2.

contingat ipsos in arrearagiis super compotum suum omnibus allocatis et allocandis, arrestentur corpora eorum, et per testimonium auditorum ejusdem compoti mittantur et liberentur proxime gaole domini Regis in partibus illis, etc. In that case, although no time be limited when the accomptant shall be imprisoned, yet it ought to be done (c) presently, as it is held in 27 H. 6. 8 a. and the reason thereof is given in *Fogassa's case*, Plowd. Com. 17 b. that the generality of the time shall be restrained to the present time, for the benefit of him upon whom the pain shall be inflicted, and therewith agrees Plow. Com. 206 b. in *Stradling's* [120 a] case. And a justice (a) of peace, upon view of the force, ought to commit the offender presently. 5. Forasmuch as the censors had their authority by the letters patent and Act of Parliament, which are high matters of record, their proceedings ought not to be by parol, *et eo potius*, because they claim authority to fine and imprison, and therefore, if judgment be given against one in the Common Pleas in a writ of (b) recaption, he shall be fined and imprisoned, but if the writ be vicontiel in the county, there he shall not be fined or imprisoned, because a writ of the Court is not of record, F. N. B. in Recaption. So in F. N. B. 47 a. a plea of trespass *vi et armis* doth not lie in the County Court, Hundred Court, &c. for they cannot make a record of fine and imprisonment; and regularly they who cannot make (c) a record, cannot fine and imprison. And therewith agrees 27 H. 6. 8. Book of Entries, tit. Account, fol. —. The auditors make a record when they commit the defendant to prison; a justice of peace upon view of the force may commit, but he ought to make a record of it. 6. Forasmuch as the Act of 14 H. 8. has given power to imprison till he shall be delivered by the president and the censors, or their successors, reason requires that it should be taken strictly, for the liberty of the subject (as they pretend) is at their pleasure: and this is well proved by a judgment in Parliament in this very case; for when this Act of 14 H. 8. had given the censors power to imprison, yet it was taken so literally, that the gaoler was not bound to receive such as they should commit to him; and the reason thereof was, because they had authority to do it without any Court: and thereupon the statute of 1 Ma. (d) cap. 9. was made, that the gaoler should receive them upon a penalty, and yet none can commit any to prison, unless the gaoler receive him: but the first Act, for the cause aforesaid, was taken so literally, that no necessary incident was implied.

And where it was objected, that this very Act of 1 Mar. c. 9. has enlarged the power of the censors, and they urged it upon the words of the Act; it was clearly resolved, that the said Act of 1 Mar. did not enlarge the power of the censors to fine or imprison any person for any cause for which he ought not to be fined or imprisoned by the said Act of (e) 14 H. 8. For the words of the Act of Queen Mary are, "according to the tenor and meaning of the said Act:" also "shall send or commit any offender or offenders for his or their offence or disobedience, contrary to any article or clause contained in the said grant or Act, to any ward, gaol, &c." But in this case Bonham has not done any thing which appears within this record, contrary to any article or clause contained within the grant or Act of 14 H. 8. Also the gaoler who refuses shall forfeit the double value of [120 b] the fines and americiaments that any offender or disobedient shall be assessed to pay; which proves that none shall be received by any gaoler by force of the Act of 14 H. 8. but he who may be lawfully

(c) *Postea* 120 b. 2 Brownl. 266. 2 Inst. 380. 2 Bulstr. 139. Fitz. Bar. 44. Br. Account 6. Br. Det. 16. Br. Execution 135. Br. Faux Imprisonment 32. 1 Ld. Raym. 483.

(a) 2 Brownl. 266. 15 R. 2. c. 2. 8 H. 6. c. 9. 6 Mod. 125.

(b) *Antea* 60 b. 41 a. 8 Co. 41. 11 Co. 43 b. F. N. B. 73 d. Vin. Ab. Amerc. 1 a. pl. 23. 1 L. Raym. 468.

(c) *Antea* fo. 38 b. 41 a. 60 b. F. N. B. 73 d. 10 Co. 103 a. 1 Salk. 200. 8 T. R. 516.

(d) 2 Brownl. 257. 262. 265, 266. Rast. Phys. 7. Lit. Rep. 169. 172, 173. 212, 213. 248, 249. 350, 351. Cr. Jac. 121. Cr. Car. 257. 1 Jones 263. Car. 115. 4 Inst. 251.

(e) 14 & 15 H. 8. cap. 5. Roll. 598. 4 Inst. 251. Rast. Phys. 3. 2 Bulstr. 185. Lit. Rep. 168, 169. 172. 212. 215. 246, 247, 248, 249. 1 Jones 261. Cro. Jac. 121. 159, 160. Cro. Car. 256. Palm. 486. Cart. 115.

fined or amerced by the Act of 18 H. 8. and that was not Bonham, as by the reasons and causes aforesaid appears. And admitting that the replication be not material, and the defendants have demurred upon it; yet forasmuch as the defendants have confessed in the Bar, that they have imprisoned the plaintiff without cause, the plaintiff shall have judgment: and the difference is, when the plaintiff replies, and by his replication it appears that he has no cause of action, there he shall never have judgment: but when the (a) bar is insufficient in matter, or amounts (as the case is) to a confession of the point of the action, and the plaintiff replies, and shews the truth of the matter to enforce his case, and in judgment of law it is not material, yet the plaintiff shall have judgment, for it is true that sometimes the declaration shall be made good by the bar, and sometimes the bar by the replication, and sometimes the replication by the rejoinder, &c. but the difference is, when the declaration wants time, place, or other circumstance, it may be made good by the bar; so of the bar, replication, &c. as appears in 18 E. 4. 16 b. But when the declaration wants substance, no bar can make it good; so of the bar, replication, &c. and therewith agrees 6 E. 4. 2. a good case, and *nota* there *dictum* Coke. *Vide* 18 E. 3. 34 b. 44 E. 3. 7 a. 12 E. 4. 6. 6 H. 7. 10. 7 H. 7. 3. 11 H. 4. 24. &c. (E).

But when the plaintiff makes replication, sur-rejoinder, &c. and thereby it appears, that upon the † whole record the plaintiff has no cause of action, he shall never have judgment, although the bar or rejoinder, &c. be insufficient in matter; for the Court ought to judge upon the whole record (F), and every one shall be intended to make the best of his own case. *Vide* (b) *Ridgeway's case*, in the Third Part of my Reports 52 b. and so these differences were resolved and adjudged between ‡ *Kendal and Helyer*, Mich. 25 & 26 Eliz. in the King's Bench, and Mich. 29 & 30 Eliz. in the same Court, between (c) *Gallys and Burbry*.

And Coke, Chief Justice, in the conclusion of his argument, observed seven things for the better direction of the president and commonalty of the said college for the future. 1. That none can be punished for practising physick in London, but by forfeiture of 5l. by the month, which is to be recovered by the law. 2. If any practise physick there for a less time than a month, that he shall forfeit nothing. 3. If any person prohibited by the statute offends in *non bene exeq'*, &c. they may punish him according to the statute within the month. 4. Those who they may commit to prison by the stat. ought to be committed (d) presently. 5. The fines which they [121 a] set, according to the statute, belong to the King. 6. They cannot impose a fine, or imprisonment without a record of it. 7. The cause for which they impose fine and imprisonment ought to be certain, for it is (a) traversable: for although they have letters patent and an Act of Parliament, yet because the party grieved has no other remedy, neither by writ of error or otherwise, and they are not made judges, nor a Court given them, but have an (b) authority only to do it, the cause of their commitment only is traversable in an action of false imprisonment brought against them (c); as upon the Statute of (c) Bankrupts, their warrant is

(a) 9 Co. 110 b. and ref. Moor. 464. 1 Lev. 195.

(E) *Vid.* note (c) *Butt's case*, ante 7 Co. 25 a. *Tippet v. May*, 1 Bos. and Pull. 413.

† Hob. 199. Hard. 38.

(F) *Vid.* Com. Dig. Pleader, C. 85. E. 37. and 1 Williams' Saunders, *Cutler v. Southern*, 118. *Vid.* also note (F) *Fraunces's case*, ante p. 93 a.

(b) Styles 354.

(†) 3 Co. 52 b.

(c) 3 Co. 52 b. Cro. El. 62. 1 Leon. 242.

(d) *Antea* 119 b. 2 Brownl. 266. 2 Inst. 380. Bar. 44. Br. Account 6. Br. Det. 16. Br. Exec. 135. Br. Faux Imprisonment 32. 2 Bulstr. 139. 6 Mod. 125. 4 B. and C. 596.

(a) 2 Brown. 266. Hard. 482.

(b) *Ante* 119 b.

(c) 13 El. c. 1. 1 Jac. cap. 15.

(G) In *Groenvelt v. Burwell*, 1 Ld. Raym. 468. Holt, C.J. observed, that "the opinion of Coke, that the case of the fine and imprisonment is traversable was an opinion *obiter*, and not pertinent to the case there; because Dr. Bonham was committed for practising without licence, and not for malpractice; and the power of